

		\$94,500 for attorneys' fees (not to exceed); \$20,000 for attorneys' costs (not to exceed); \$7,490 for settlement administration fees (not to exceed); and \$20,000 total PAGA penalties (\$15,000 to LWDA). The final approval hearing is scheduled for <u>February 18, 2027 at 2:00 p.m.</u> in Department CX105. The motion for final approval shall be filed at least 16 court days before the hearing. See Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
9	Hernandez v. Islands Restaurants, L.P. 2023-01320258	Off calendar.
10	Martinez v. Auto International Insurance Agency Inc. 2022-01297545	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of an \$880,000 class action and PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. In the September 25, 2025 order (ROA 119), the court stated that the settlement agreement is undated. This has not been addressed. 2. In the September 25, 2025 order, the court stated that the parties should provide plaintiff's anticipated total compensation to be received (including for any individual claims and excluding any enhancement payment). Plaintiff has provided her anticipated individual class and PAGA payments, but has not stated whether she anticipates receiving any compensation for any individual claims. Does plaintiff anticipate receiving any compensation for any individual claims? 3. In the September 25, 2025 order, the court stated that the "Released Parties" provision in paragraph 1.41 of the settlement agreement was overbroad. The "Released Parties" provision in the amendment to the settlement agreement remains overbroad. The following unidentified, ambiguous and/or unrelated third parties should be removed: "consultants, partners," "joint venturers, agents," and "accountants, insurers, reinsurers, and/or legal representatives." 4. In its September 25, 2025 order, the court stated that while it will not determine the amount of attorneys' fees to be

		awarded until final approval, the court is unlikely to approve attorneys' fees in excess of 30% of the gross settlement amount absent unique circumstances. The court stated that plaintiff's counsel should address in the supplemental filing whether any such unique circumstances exist here. Plaintiff's counsel did not address this issue in the supplemental papers or identify any unique circumstances warranting the higher amount of attorneys' fees counsel seeks. The court preliminarily finds attorneys' fees not to exceed \$264,000 reasonable in this case. 5. In its September 25, 2025 order, the court stated nonrecoverable items such as postage, mailing and legal research charges should not be included in plaintiff's request for reimbursement of litigation costs. Plaintiff's counsel seeks \$15.88 in postage, which should be removed. Supp. Lazar Decl. ¶ 6 & Ex. 4. Plaintiff's counsel should provide invoices for the mediation charge (\$10,450) and the charge for "Analysis" payable to "United States Postal Service" (\$11,900). Plaintiff's counsel should also explain the necessity and reasonableness of the costs incurred for "Analysis" payable to "United States Postal Service." 6. In its September 25, 2025 order, the court stated while it will not determine the amount of any enhancement award to be paid to plaintiff until final approval, the court is unlikely to approve an enhancement award in excess of \$5,000 absent unique circumstances. The court stated that plaintiff should address in the supplemental filing whether any such unique circumstances exist here. The court also stated that an enhancement award is not intended to serve as consideration for the release of additional claims, but rather to compensate class representatives for work done on behalf of the class, to make up for financial or reputational risk undertaken in bringing the action, and, in some circumstances, to recognize their willingness to act as a private attorney general. The court stated that it is unlikely to approve a settlement that provides an enhancement award in exchange for a general release. In the supplemental papers, plaintiff did not identify any unique circumstances warranting the \$7,500 enhancement payment plaintiff seeks. In addition, plaintiff's counsel's statement in her supplemental declaration that "the requested enhancement award is not consideration in exchange for Plaintiff's general release because the amount is subject to Court approval" (Supp. Lazar Decl. (ROA 142) ¶ 19) is inconsistent with plaintiff's moving papers (Brief (ROA 106) at 18:25-26 ("Plaintiff is entitled to an enhanced award . . . for providing Defendant with a more expansive release of claims, including a waiver based upon California Civil Code section 1542, in exchange for the enhancement award.")) and with plaintiff's counsel's July 28, 2025
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		declaration (Lazar Decl. (ROA 104) ¶ 39 ("Plaintiff is entitled to a Class Representative Service Payment . . . for providing Defendant with a more expansive release of claims, including a waiver based upon California Civil Code section 1542, in exchange for the Class Representative Service Payment.")). The court preliminarily finds an enhancement award not to exceed \$5,000 reasonable in this case. <u>As to the notice:</u> 7. The notice should be revised consistent with the above. 8. In the September 25, 2025 order, the court stated that the title of the notice and throughout the document should include "and PAGA" after "class" and before "settlement." The phrase "and PAGA" should be inserted after "class action" and before "settlement" in the gray box at the top of page 1 of the notice, and after "class action" and before "litigation" in the second sentence of the paragraph immediately below the gray box. <u>As to the proposed order (ROA 140, 148):</u> 9. The proposed order should be revised consistent with the above. 10. The settlement agreement and any amendments thereto and the class notice packet (in English and Spanish) should be attached to the proposed order as exhibits, not submitted as a separate document from the proposed order. The hearing on plaintiff's motion for preliminary approval of a class action and PAGA settlement is continued to <u>February 4, 2027 at 2:00 p.m.</u> in Department CX105 to permit the parties to address and respond to the above issues. <i>See also</i> Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). A supplemental brief shall be filed at least 9 court days before the hearing and shall address as necessary each of the above points. <u>If required, an amendment to the settlement agreement is directed, rather than "amended settlement agreement," to streamline the court's review.</u> The parties shall also provide redlined copies of any revised documents. Plaintiff is ordered to provide notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service. No earlier hearing date is available for this motion.
11	Montes v. Restoration Hardware, Inc. 2025-01534796	Off calendar.
12	Ramirez v. Golden Glass, Inc.	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u>